URUKIKO RUKURU RURI KU CYICARO CYARWO I KIGALI, RUHABURANISHIRIZA IMANZA Z'UMURIMO KU RWEGO RW'UBUJURIRE, RUKIJIJE MU RUHAME URUBANZA RSOC 00001/2025/HC/KIG, NONE KU WA 30/10/2025:

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HABURANA :

UREGA:

GASIZA Eric mwene Gasiza Charles na Muhoza Salma utuye mu Mudugudu wa Kabagari, mu Kagari ka Kibaza, mu Murenge wa Kacyiru, mu Karere ka Gasabo, mu Mujyi wa Kigali, Tel : +250781430103.

UREGWA:

NEW CENTURY DEVELOPMENT Ltd mu izina ry umuyobozi wayo, ifite icyicaro gikuru mu Mudugudu wa Mubuga, Akagari ka Masoro, Umurenge wa Ndera, Akarere ka Gasabo, Umujyi wa Kigali.

IKIREGERWA :

Gusaba kubyutsa urubanzanº RSOCA 00366/2023/HC/KIG rwasibwe ku wa 30/01/2025 (Kujuririra urubanza RSOC 00190/2022/TGI/NYGE rwaciwe n'Urukiko Rwisumbuye rwa Nyarugenge ku wa 17/11/2023).

IKIBURANWA :

Indishyi zo kwirukanwa ku kazi mu buryo bunyuranyije n'amategeko; Icyemezo cy'umukoresha wa nyuma gikozwe nabi; Gutangirwa imisanzu y'ubwiteganyirize bw'abakozi muri RSSB; Amafaranga y'ikurikiranarubanza n'ay'igihembo cya Avoka.

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I. IMITERERE Y'URUBANZA :

1. Ku wa 06/05/2019, GASIZA Eric yagiranye amasezerano y'akazi y'igihe kitazwi na NEW CENTURY DEVELOPMENT Ltd, ayo masezerano aza guseswa na NEW CENTURY DEVELOPMENT Ltd ku wa 11/03/2022 ivuga ko yakoze ikosa rikomeye ryo kuba yarakiriye mu buryo butemewe amafaranga angana na 50$ y'umukiriya. GASIZA Eric avuga ko ikosa

rikomeye rivugwa n'umukoresha we ntaryo yigeze akora, asaba Urukiko kubisuzuma rukamurenganura ngo kuko yasezerewe ku kazi mu buryo bunyuranyije n'amategeko, agasaba ko yahabwa indishyi zijyanye no kwirukanwa ku kazi mu buryo bunyuranyije n'amategeko, indishyi zikomoka ku cyemezo cy'umukoresha wa nyuma yahawe kitavugisha ukuri kandi umukoresha yaranze kugikosora, ,gutangirwa imisanzu y'ubwiteganyirize bw'abakozi muri RSSB no gusubizwa amafaranga y'ikurikiranarubanza n'ay'igihembo cya Avoka.

2. NEW CENTURY DEVELOPMENT Ltd yireguye isaba ko ikirego cya GASIZA Eric kitahabwa ishingiro, isobanura ko yasezerewe ku kazi kubera ikosa rikomeye yakoze ryo kwakira amafaranga y'umukiriya akoresha inzira itemewe kandi ntamusubize amafaranga yari yamusigaraniye angana na 50$, maze nk'umuntu wari uri mu igeragezwa agahita asezererwa bikozwe mu buryo bukurikije amategeko, ko rero nta ndishyi akwiye guhabwa, ahubwo ari we wategekwa gusubiza NEW CENTURY DEVELOPMENT Ltd amafaranga y'ikurikiranarubanza bitewe no kuyishora mu rubanza nta mpamvu.

3. Mu rubanza RSOC 00190/2022/TGI/NYG rwaciwe n'Urukiko Rwisumbuye rwa Nyarugenge ku wa 17/11/2023, rushingiye ku kuba hari ibimenyetso bigaragaza ko ikosa rikomeye GASIZA Eric yirukaniwe yarikoze, rwemeje ko ikirego cya GASIZA Eric gifite ishingiro kuri bimwe; rwemeje ko GASIZA Eric atigeze asezererwa ku kazi mu buryo bunyuranyije n'amategeko; rutegeka NEW CENTURY DEVELOPMENT Ltd guha GASIZA Eric icyemezo cy'umukoresha wa nyuma gikosowe kandi agahabwa indishyi zingana n'umushahara umwe yahembwaga wa 153.381 Frw; rutegeka NEW CENTURY DEVELOPMENT Ltd kwishyura igihembo cya Avoka wa GASIZA Eric kingana na 700.000 Frw; rutegeka NEW CENTURY DEVELOPMENT Ltd gutangira imisanzu y'ubwiteganyirize GASIZA Eric kuva ku wa 14/05/2019 kugeza ku wa 11/03/2022; rutegeka NEW CENTURY DEVELOPMENT Ltd gusubiza GASIZA Eric amafaranga angana 20.000 Frw yatanzeho ingwate y'amagarama arega.

4. GASIZA Eric yajuririye urwo rubanza mu Rukiko Rukuru maze urubanza rwandikwa kuri numero RSOCA00366/2023/H runahabwa itariki yo kuzaburanishirizwaho mu mizi. Ku munsi w'iburanisha nta muburanyi n'umwe witabye maze Urukiko rufata icyemezo cyo gusiba urwo rubanza.

5. GASIZA Eric yabyukije urwo rubanza avuga ko urubanza RSOCA 00366/2023/HC/KIG rwaburanishijwe ku itariki itandukanye n'iyo yari yahawe mu nama ntegurarubanza kandi bigakorwa atamenyeshejwe. Uburanira NEW CENTURY DEVELOPMENT Ltd, nawe yemeje ko ariko byagenze, maze ku bwumvikane bw'impande zombi, Urukiko rwemeza ko urubanza RSOCA 00366/2023/HC/KIG rubyutswa.

6. Mu bujurire bwe, GASIZA Eric avuga ko mu icibwa ry'urubanza rujuririrwa Urukiko rwemeje ko yakoze ikosa rikomeye kandi ntaryo yigeze, asaba Urukiko rwajuririwe kubisuzuma rukemeza ko yirukanywe ku kazi mu buryo bunyuranyije n'amategeko agahabwa indishyi zose yasabye.

7. Mu kweiregura ku bujurire bwa GASIZA Eric, uburanira NEW CENTURY DEVELOPMENT Ltd avuga ko GASIZA Eric yirukaniwe ikosa rikomeye yakoze, asaba ko ubujurire bwa GASIZA Eric butahabwa ishingiro.

8. Muri uru rubanza, Urukiko rurasuzuma ikibazo kijyanye no kumenya niba GASIZA Eric yarakoze ikosa rikomeye nk'impamvu yashingiweho haseswa amasezerano y'umurimo yari yaragiranye na NEW CENTURY DEVELOPMENT Ltd.

II. ISESENGURWA RY'IKIBAZO KIGIZE URUBANZA:

- **Ku bijyanye no kumenya niba GASIZA Eric yarakoze ikosa rikomeye nk'impamvu yashingiweho haseswa amasezerano y'umurimo yari yaragiranye na NEW CENTURY DEVELOPMENT Ltd:**

9. GASIZA Eric n'umuburanira bavuga ko mu rubanza rujuririrwa Urukiko rwanzuye ko NEW CENTURY DEVELOPMENT Ltd itigeze yirukana GASIZA Eric mu buryo bunyuranyije n'amategeko, rusonabanura ko ikosa yakoze ari ikosa rikomeye ryatumye ahita yirukanwa mu kazi ngo kuko ari we wakiriye umukiriya (client) anakira amafaranga y'uwo mukiriya. Bavuga ko Urukiko rwasobanuye ko hashingiwe ku mashuho ya camera agaragaza ko GASIZA Eric yinjiye mu cyumba cy'umu client afite "bill folder", ruhera kuri icyo rwemeza ko yishyuwe amafaranga nyamara iki atari ikimenyetso gihagije cyagaragaza ko yishyuwe ayo mafaranga, ngo nyamara ntabwo iteka ryose iyo uhaye umu client facture ahita akwishyura. Bavuga ko amashusho yafashwe na CCTV Camera uregwa ashingiraho, harimo gushidikanya kucyo GASIZA Eric yari afite mu ntoki, kuko nk'uko babyanditse muri raporo uregwa yikoreye avuga ko "on 14/1/2022,17: 59

PM, Eric Come out of the guest room with out trolley but with something like bill folder on his left hand. Bavuga ko Urikiko rutari rukwiye gufata icyemezo rushingiye k umashusho yafashwe kandi hakubiyemo kwivuguruza ku cyo GASIZA Eric yari afashe. Bavuga ko Urukiko rwibeshye mu gufata icyemezo, kuko rwavuze ko GASIZA Eric ahakana ko atigeze yakira umu client kandi atari byo, ibi akab atabihakana, ko aahubwo we icyo ahakana ari uko nta kosa yigeze akora cyane ko uwo mu client atamwishyuye. Bavuga ko mu mwanzuro w'urubanza rujuririrwa, Urukiko rwavuze ko GASIZA Eric yakiriye amafaranga y'umu client akaba atarigeze amugarurira ndetse akaba atarabishyize muri system nk'uko byagombaga gushyirwamo, bagasanga ari ukwibeshya kuko urebye mu kibazo cyagaragajwe n'umu client, ubwe avuga ko yatanze amafaranga angana na 50 USD yarangiza akagarurirwa 10.000 Frw, kandi ikibazo umu client yari afite ari uko atigeze ahabwa inyemezabwishyu (facture).

10. GASIZA Eric n'umuburanira bavuga n'iyo uwo mu client yaba ataragaruriwe bidakwiye kubzwa GASIZA Eric kuko atigeze yishyurwa ayo mafaranga ku buryo ari we wari ukwiye kumugarurira. Bavuga ko nta kimenyetso na kimwe kigaragaza neza ko GASIZA Eric yigeze yakira amafaranga y'uwo mu client, ko rero GASIZA Eric adakwiye guhamwa n'ikosa rikomeye ryiswe "breaching cash handling procedures" kuko ntaho ahurira na system ya AYS kuko atari we uwakira commande y'umu client, ko ahubwo we akazi akora ari ako kujyana commande aho igomba kujya. Bavuga ko raporo yiswe "Investigation of cash cheque in room service" yo ku wa 26/02/2022 yanditswe na Sheikh Abdul Nazir, yagaragaje ko bitashoboka ko GASIZA Eric yakora ibyo bintu wenyine. Basaba Urukiko rwajuririwe kongera gusuzuma uru rubanza, ngo kuko basanga n'iyo iryo kosa ryaba ryarabaye ridakwiye kwitwa ikosa rikomeye, bagasaba Urukiko gutegeka NEW CENTURY DEVELOPMENT Ltd guha GASIZA Eric indishyi zijyanye no kwirukanwa mu kazi mu buryo unyuranyije n'amategeko zibazwe mu buryo bukurikira : 153.381 Frw x 6 = 920.286 Frw.

11. Uburanira NEW CENTURY DEVELOPMENT Ltd avuga ko n'ubwo urega n'umwunganira bavuga ko nta kosa rikomeye GASIZA Eric yakoze, ariko mu rubanza rwajuririwe Umucamanza yasobanye uko iryo kosa ryakozwe ashingiye ku bienyetso yagaragrijwe. Basaba ko Urukiko rwajuririwe narwo

rwabibona gutyo, rukemeza ko GASIZA Eric yirukaniwe ikosa rikomeye yakoze nk'uko ryasobanuwe, indishyi asaba ntazihabwe.

UKO URUKIKO RUBIBONA :

12. Impaka kuri iyi ngingo zishingiye ku kumenya niba GASIZA Eric yarakoze ikosa rikomeye ryashingiweho asezererwa ku kazi.

13. Ingingo ya 26 y'Itegeko nº 66/2018 ryo ku wa 30/8/2018 rigenga umurimo mu Rwanda iteganya ko Umukoresha asesa amasezerano y'umurimo hadatanzwe integuza mu gihe umukozi akoze ikosa rikomeye. Mu gihe iseswa ry'amasezerano y'umurimo ritewe n'ikosa rikomeye, umukoresha agomba kumenyesha umukozi mu nyandiko mu gihe kitarenze amasaha mirongo ine n'umunani (48) uhereye igihe ibimenyetso by'ikosa rikomeye bigaragariye kandi akagaragaza impamvu z'iseswa.

14. Ingingo ya 2 y'Iteka nº 002/19.20 ryo ku wa 17/3/2020 rya Minisitiri rishyiraho urutonde rw'amakosa akomeye iteganya ko : Ibikorwa bikurikira bifatwa nk'amakosa akomeye: 1° ubujura; 2° uburiganya; 3° kurwanira ku kazi; 4° kunywera ibinyobwa bisindisha mu kazi; 5° kuba uri ku ku kazi wasinze cyangwa wanyoye ibiyobyabwenge; 6° gukora inyandiko mpimbano; 7° ivangura iryo ari ryo ryose ku kazi; 8° guhoza undi ku nkeke bifitanye isano n'imibonano mpuzabitsina; 9° gusaba, gutanga cyangwa kwakira ruswa cyangwa indonke; 10° kunyereza umutungo; 11° kubona cyangwa gutanga mu buryo butemewe amakuru y'akazi y'ibanga; 12° imyitwarire ishobora gushyira mu kaga ubuzima n'umutekano by'abandi ku kazi; 13° ihohotera rishingiye ku gitsina mu kazi; 14° guhagarika imirimo mu buryo budakurikije amategeko; 15° kwangiza ibikoresho by'akazi ku bushake; ko umukozi ukoze igikorwa icyo ari cyo cyose mu bikorwa bivugwa mu gika cya mbere cy'iyi ngingo aba akoze ikosa rikomeye rituma habaho iseswa ry'amasezerano y'umurimo nta nteguza.

15. Mu rubanza Nº RADA 00003/2019/CA, rwaciwe n'Urukiko rw'Ubujurire ku wa 12/06/2020 haburana Leta y'u Rwanda / Minisiteri y'Ubucuruzi n'Inganda na NDAHAYO Pascal (igika cya 29), no mu rubanza Nº RS/INJUST/RSOC 00003/2022/CA, rwaciwe n'Urukiko rw'Ubujurire ku wa 21/12/2023, KAYITABA Mukunde Eugénie iburana na WOMEN FOR WOMEN

INTERNATIONAL (igika cya 28); Urukiko rw'Ubujurire rwatanze umurongo w'igisobanuro cy'ikosa rikomeye giteye ku buryo bukurikira: Ikosa rikomeye ni ikosa ritihanganirwa (faute inéxcusable), rifite uburemere bwihariye, rikomoka ku gukora cyangwa kwanga gukora ku bushake, ugikora cyangwa uwanga kugikora azi neza ingaruka zabyo kandi nta gisobanuro abifitiye.

16. Mu rubanza Nº RSOCAA 0003/15/CS rwaciwe n'Urukiko rw'Ikirenga ku wa 05/05/2016, RUGENERA Marc aburana na SORAS Assurances Générales Ltd (SORAS AG), no mu rubanza Nº RS/INJUST/RSOC 00005/2023/CA, rwaciwe n'Urukiko rw'Ubujurire ku wa 22/12/2023 haburana KAYITESI Joselyne na ADEPR, ndetse no mu rubanza Nº RS/INJUST/RSOC 00020/2022/CA, rwaciwe n'Urukiko rw'Ubujurire ku wa 26/03/2024, BIGIRIMANA Tharcisse aburana na VIVO ENERGY RWANDA Ltd (igika cya 24), izi manza zatanze umurongo uvuga ko: Umukoresha wiyemeje gusesa amasezerano y'umurimo afitanye n'umukozi aba agomba kugira impamvu isobanutse ibimuteye kandi akubahiriza icyo amategeko ateganya ku birebana n'inzira bikorwamo. Iyo atabikoze muri ubwo buryo byitwa kwirukana umukozi nta mpamvu. Iyo umukoresha yirukanye umukozi nta mpamvu ategekwa kwishyura indishyi ziteganywa n'itegeko.

17. Mu rubanza RS/INJUST/RSOC 00001/2019/SC rwaciwe n'Urukiko rw'Ikirenga ku wa 31 Mutarama 2020, haburana NIWEMUGENI v. KCB RWANDA LTD, Urukiko rw'Ikirenga rwasobanuye ko amakosa umukozi yakora mu rwego rw'akazi ashingiye ku myitwarire ari impamvu yumvikana ashobora gutuma amasezerano y'akazi aseswa kandi ko umukoresha washeshe amasezerano ari we utanga ibimenyetso bigaragaza ko umukozi yakoze ikosa.

18. Umuhanga mu mategeko witwa Jean Claude Javilier, mu gitabo cye cyitwa "Droit du Travail", avuga ko: Umukoresha ashobora gusezerera umukozi ku kazi mu gihe hari impamvu ifatika (cause réelle) kandi ikomeye (cause sérieuse). Asobanura ko impamvu ifatika ari impamvu igaragara, idashingiye ku marangamutima, naho impamvu ikomeye ari impamvu ifite uburemere ituma umukozi adashobora gukomeza akazi yakoraga ku buryo ihesha

umukozi we uburenganzira bwo kumusezerera ku kazi bitagize ingaruka ku kigo yakoragamo[1].

19. Urukiko rurasanga NEW CENTURY DEVELOPMENT Ltd yarasezereye ku kazi GASIZA Eric ku mpamvu z'ikosa rikomeye ryo gutanga amafunguro ku mukiriya ariko ntabishyire muri system y'ikoranabuhanga kuva commande itanzwe kugeza yishyuwe, kandi ntagarurire umu client amafaranga angana na 50$ yamugombaga. GASIZA Eric we ahakana ko atari we wakiriye uwo mu client, ko kandi n'ubwo yaba ari we wakiriye uwo mu client ririya ritari gufatwa nk'ikosa rikomeye ryatuma yirukanwa. Rurasanga nk'uko byagaragajwe na Komite ya discipline, cameras amashusho ya camera yasuzumwe yagaragaje ko ari GASIZA Eric wakiriye uwo mukiriya kandi ko yishyuwe amafaranga ayashyira mu gaseke, kuba ataragaruriye uwo mukiriya ndetse n'ibyo akoze ntabishyire muri system yabigenewe, ni ikosa rikomeye yakoze ry'uburiganya rikaba ryarakozwe ku wa 14/01/2022, rimenyekana ku wa 01/03/2022, abanza guhagarikwa ku kazi by'agateganyo uhereye ku wa 04/03/2022 kugeza ku wa 10/03/2022, arandikirwa anatumizwa mu nama ya discipline ku wa 11/03/2022, maze inama yanzura ko ariwe wakoze iryo kosa ahita asezererwa ku kazi. Urukiko rurasanga ibyashingiweho mu gusezerera ku kazi GASIZA Eric ari ikosa rikomeye ry'uburiganya, kandi mu kumusezerera bikaba byarakozwe hubahirijwe ibiteganywa n'amategeko, indishyi zo gusezererwa mu kazi mu buryo bunyuranyije n'amategeko GASIZA Eric yasabye akaba atazihabwa.

III. <u>ICYEMEZO CY'URUKIKO</u> :

20. **Rwemeje** ko ikirego cy'ubujurire cyatanzwe na GASIZA Eric nta shingiro gifite.

21. **Rwemeje** ko imikirize y'urubanza RSOC 00190/2022/TGI/NYGE rwaciwe n'Urukiko Rwisumbuye rwa Nyarugenge ku wa 17/11/2023, idahindutse.

22. **Rwemeje** ko GASIZA Eric atigeze asezererwa ku kazi mu buryo bunyuranyije n'amategeko.

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[1] L'existence d'une cause réelle et sérieuse justifient le licenciement, une cause est réelle si elle présente un caractère d'objectivité, ce qui exclut les préjugés et les convenances personnelles. La cause est sérieuse quant elle revêt une certaine gravité qui rend impossible, sans dommage pour l'entreprise, la continuation du travail et rend nécessaire le licenciement, par Jean-Claude Javilier, Droit du Travail, 6ème édition, 1998, Paris, LDGJ, p.303.

23. **Rutegetse** NEW CENTURY DEVELOPMENT Ltd guha GASIZA Eric icyemezo cy'umukoresha wa nyuma gikosowe kandi agahabwa indishyi zingana n'umushahara umwe yahembwaga wa 153.381 Frw.

24. **Rutegetse** NEW CENTURY DEVELOPMENT Ltd kwishyura igihembo cya Avoka wa GASIZA Eric kingana na 700.000 Frw.

25. **Rutegetse** NEW CENTURY DEVELOPMENT Ltd gutangira imisanzu y'ubwiteganyirize bwa GASIZA Eric kuva ku wa 14/05/2019 kugeza ku wa 11/03/2022.

26. **Rutegetse** NEW CENTURY DEVELOPMENT Ltd gusubiza GASIZA Eric 20.000 Frw yatanzeho ingwate y'amagarama arega.

NI UKO RUKIJIJWE KANDI RUSOMEWE MU RUHAME, NONE KU WA 30/10/2025.

Sé	**Sé**
DUSABIMANA Sylvere	**INGABIRE Stephanie**
UMUCAMANZA	**UMWANDITSI**